

Court No. - 21

Case :- WRIT - C No. - 724 of 2017

Petitioner :- Ram Vishal @ Vishal Prasad @ Vishal Kesarwani

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ramesh Kumar Mishra

Counsel for Respondent :- C.S.C., Krishna Agarawal

Hon'ble V.K. Shukla, J.

Hon'ble Mrs. Sangeeta Chandra, J.

Ram Vishal alias Vishal Prasad alias Vishal Kesarwani is before this Court with a request to give the electricity connection in the name of petitioner in the house in question that has been purchased by him.

On the matter being taken up today, Shri Krishna Agarwal, Advocate has informed us that till today no application has been moved in the prescribed format as has been provided for under U.P. Electricity Supply Code, 2005.

Once such is the factual situation, then we are not at all in a position to ask the respondents to provide electricity connection.

The provisions of U.P. Electricity Act, 2003 read with provisions of U.P. Electricity Supply Code, 2005 are self contained Code wherein full fledged mechanism has been provided for to claim electricity connection after fulfilling the requisite formalities contained therein. Till today, the petitioner concerned has not at all proceeded to move an application in the prescribed format after fulfilling the requisite formalities.

No writ of mandamus can be issued as has been prayed for.

In view of this, the present writ petition is dismissed.

We leave it open to the petitioner to move an application as has been provided for under U.P. Electricity Act, 2003 read with U.P. Electricity Supply Code, 2005 and we hope and trust that in case such an application is moved, the said application will be dealt with strictly on the parameters that have been laid down for grant of electricity connection.

Order Date :- 11.1.2017

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